1951

F

FAR EASTERN DEPARTMENT.

86

FFJ1022/199

JAPAN

FROM

Mr. Clutton
Tokyo.

No. 355.

Dated 30th March 1951.

Received in Registry — 2nd April 1951.

Japanese Peace Treaty: main practicable result for Japan of the continuance of a theoretical state of war with Soviet Union will be in fishing matters

Refers to F.O. letter of 22nd March (FJ 1022/122)

Rptd Washington.

REFERENCES

(Print)

(How disposed of)
O.J.P.T. Short Dist April 3rd

(Action completed)
S 23/4

(Index)
25/6/51

39318

MINUTES

Copied to Short Dist.

A.H.Maddal
3/4

I think that there is ~~considerable~~ some force in the last paragraph of this telegram.

2. The choice before us as I see it is between an outright cession of S. Sakhalin & the Kuriles to Russia, and the cession of these territories by Japan subject to Russia's becoming a party to the Treaty (compare Art 89 of the Italian Treaty). The latter is the suggestion made in the U.S. draft treaty.

3. From Japan's point of view I think that the treaty's provisions can only make a difference ~~between~~ to her future relations with Russia. In practice she has lost these

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39318

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penetration already, with respect, & after of some thought, I think the balance of advantage will lie in Japan ceding the Kuriles & Sakhalin to Russia with "no strings" attached. This would I submit provide two positive advantages

(a) it would stifle a promising Russian propaganda line

(b) it would recognize the ~~situation~~ ~~gen~~ existing situation which none of the democracies is prepared to alter by force. The only way it can be changed is by a voluntary agreement between Russia & the rest of the Treaty making powers, or between Russia & Japan. The first seems unlikely, & the second would probably be against our interests.

Mr. C. H. Johnston.

(C.A. Scott) 7/4.

This telegram was considered in preparing Annex D of the paper submitted to the Cabinet yesterday.

CAG
20.iv

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(C.P. Scott) 7/x.

Mr. C. H. Johnston.

This telegram was considered in preparing Annex B of the paper submitted to the Cabinet yesterday.

CAES
20.12

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FJ 1022/279 F

88

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Cypher/OTP **DEPARTMENTAL DISTRIBUTION**

FROM TOKYO TO FOREIGN OFFICE

Mr. Clutton
No. 355 D. 2.12 p.m. 31st March, 1951.
30th March, 1951. R. 3.15 p.m. 31st March, 1951.

TOP SECRET

Addressed to Foreign Office telegram No. 355 of 30th March, Repeated for information Saving to Washington

Johnston's letter to Tomlinson F.J.1022/12~~3~~ 2 ? of March 22nd; Japanese Peace Treaty.

Following are my comments:

Main practical result for Japan of the continuance of a theoretical state of war with the Soviet Union will I think be in fishing matters. I hear that fishing craft are continually being arrested and often confiscated by the Soviet naval patrols in waters off the Hokkaido. After the conclusion of a Peace Treaty without the Soviet Union we may expect these incidents to increase.

2. I do not agree with the conclusion reached in paragraph 8 of the letter under reference and consider that the arguments given in paragraph 6 in favour of specifying in the Treaty that Japan should cede South Sakhalin and Kuriles to Russia greatly outweigh the arguments to the contrary in paragraph 7. In addition:-

(a) If it is our intention to build up a case that the Soviet non-participation is no one's fault except that of the Soviet Government, and therefore to go through forms of seeking Soviet views at various stages in the peace-making, surely we are prejudicing our position by ignoring in the Treaty the Soviet claims to these two territories when the Soviet Government in its communication with Dulles about his original seven points drew attention to the omission of the Soviet.

(b) Whether or not Livadia agreement is binding on all would-be signatories of the Peace Treaty, His Majesty's Govern-

/ment still regard....

FJ 1022/175

88

[illegible] telegram is of particular [illegible] and should be retained by the authorised recipient and not passed on.

Cypher/OTP [illegible]

FROM TOKYO TO FOREIGN OFFICE

Mr. Clutton
No. [illegible]
30th March, 1951.

D. 2.12 p.m. 31st March, 1951.
R. 3.15 p.m. 31st March, 1951.

TOP SECRET

Addressed to Foreign Office telegram No. [illegible] of 30th March. Repeated for information Saving to Washington.

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(a) If it is our intention to build up a case that the Soviet non-participation is no one's fault except that of the Soviet Government, and therefore to go through forms of seeking Soviet views at various stages in the [illegible], surely we are prejudicing our position by [illegible] in the treaty the Soviet claims to these two territories when the Soviet Government in its communication with [illegible] about his original [illegible] [illegible] drew attention to the omission of the [illegible].

(b) [illegible] all [illegible] of the Japanese Peace Treaty, His Majesty's Government [illegible]

Japan still regard....

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ment still regard it a settlement as binding on themselves and the Japanese know this. Since therefore we and the Russians are at one regarding the disposal of South Sakhalin and Kuriles, will omission of the necessary cession clause really have any effect on risk of Japan later joining the Russian camp, or will it not be merely regarded by the Japanese as an attempt on our part wilfully to provoke bad blood?

(d) [sic] Unless cession of Kuriles is mentioned in the Treaty, it is difficult to see how the Japanese claims to the Habomai group can be covered.

Foreign Office please pass Washington as my telegram No. 80 Saving.

[Repeated as requested]

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FF

[illegible]

[illegible] No. [illegible] to Foreign Office [illegible]

89

-2-

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